

ALABAMA DEPARTMENT OF REVENUE
ADMINISTRATIVE CODE

CHAPTER 810-3-8
RECOGNITION OF GAIN OR LOSS

810-3-8-.05 Transfer Of Property To Corporation Controlled By
Transferor.

(1) For transactions after December 31, 1984.

(a) If property is transferred to a corporation in a transaction which satisfies the requirements of 26 U.S.C. §351, relating to transfers to corporations controlled by the transferor, the amount of gain or loss shall be determined in accordance with 26 U.S.C. §351, as modified by 26 U.S.C. §357, relating to the recognition of gain as a result of the transferee corporation's assumption of liabilities.

(2) For interpretation of federal statutes adopted by the Alabama Legislature see Rule 810-3-1.1-.01, Operating Rules.

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Statutory Authority: Code of Ala. 1975, §§40-2A-7(a)(5), 40-18-8.

History: Adopted: September 30, 1982. **Amended:** June 17, 1988; filed July 27, 1988. **Amended:** Filed September 18, 1996; effective October 23, 1996. **Amended:** Filed April 28, 1999; effective June 2, 1999.